

Attorney General

The Attorney General of India is appointed by the President of India under Article 76 of the Constitution. A person qualified to be a Judge of Supreme Court is appointed to such a post. He is the first legal officer of the Government of India.

He is consulted in all important cases. He also appears in the Supreme Court on behalf of Government of India to conduct cases. He has the right of audience in all the courts and can take part in the proceedings of either house of Parliament, but he is not entitled to vote. He holds office during the pleasure of the President. He is prohibited to take appointment as director in any company without permission of government, but he is not debarred from private legal practice.

PARLIAMENT

According to **Article 79**, the Parliament consists of the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha). Though, the President is not a member of either of the house, he is an integral part of it.

Rajya Sabha (Article 80)

- **Maximum Strength** 250 (Out of these, President nominates 12 members amongst persons having special knowledge or practical experience in the fields of literature, science, art and social service).
- Presently, the Parliament, by law has provided for 233 seats for the States and the Union Territories. The total membership of Rajya Sabha is 245.
- All the states and only 2 Union Territories, Delhi and Puducherry are represented in the Rajya Sabha.
- Representatives of the state are elected by members of State Legislative Assemblies on the basis of proportional representation through a single transferable vote. States are represented on the basis of their population.
- There are no seats reserved for Scheduled Castes and Scheduled Tribes in Rajya Sabha.

Membership

Conditions to be a member of Rajya Sabha are as follow

- Citizen of India.
- 30 years of age.
- Be a parliamentary elector in the State, in which he is seeking election.
- Others as prescribed by Parliament from time-to-time.
- For **6 years**, as **one-third** members retire every **2 years**.

Presiding Officer

- Vice-President is the **ex-officio Chairman** of Rajya Sabha. He presides over the proceedings of the Rajya Sabha as long as he does not act as the President of India during a vacancy in the office of the President of India.
- Also a Deputy Chairman is elected from among its members.
- In Rajya Sabha any bill can originate, apart from **Money Bill** (including budget).
- Rajya Sabha is a permanent body and is not subject to dissolution unlike Lok Sabha.

Special Powers of the Rajya Sabha

- A resolution seeking the removal of the Vice-President can originate only in the Rajya Sabha.
- If, the Rajya Sabha passes a resolution by a majority of not less than two-third of the members present and voting that it is necessary in the national interest that Parliament should make laws with respect to any matter enumerated in the State List. It shall be lawful for Parliament to make law for a period of not more than 1 year. (Article 249)
- If the Rajya Sabha passes a resolution by a majority of not less than two-third of the members present and voting, then it is necessary in the national interest to create one or more **All-India Services**, Parliament by law, provides for such service or services. (Article 312)

Lok Sabha

- **Maximum Strength** 550 + 2 (530 : States, 20 : UTs).
- **Present Strength of Lok Sabha** (543 +2).
- Lok Sabha is not a permanent body and is subject to dissolution.
- The normal tenure of the Lok Sabha is 5 years, but it may be dissolved earlier by the President.

Tenure

- The life of the Lok Sabha can be extended by the Parliament beyond the 5 years term, when a proclamation of emergency under **Article 352** is in force. But, the Parliament cannot extend the normal life of the Lok Sabha for more than **1 year** at a time, but in any case such extension cannot continue beyond a period of **6 months** after the proclamation of emergency comes to an end.
- **Quorum for Either House** Article 100 (c) Quorum is the minimum number of members required to be present before it can transact any business. It is 1/10th of the total number of members.

Membership

Conditions to be a member of Lok Sabha

- Citizen of India.
- At least 25 years of age.
- Must not hold any office of profit.
- He must not be of unsound mind/insolvent.
- He must be a registered voter in any parliamentary constituency.

A member can be disqualified

- if, he voluntarily gives up the membership of party.
- if, he over rules the 'whip'.
- if, he remains absent for 60 days without intimation.

Presiding Officers

- Presiding officer in Lok Sabha is the **Speaker** (in his/her absence, Deputy Speaker). The members among themselves elect him/her.
- The Speaker continues in office even after the dissolution of the Lok Sabha till a newly elected Lok Sabha meets.

The speaker has to vacate his office earlier in any of the following three cases

- If he ceases to be a member of the Lok Sabha;
 - If he resigns by writing to the Deputy Speaker;
 - If he is removed by a resolution passed by a majority of all the members of the Lok Sabha. Such a resolution can be removed only after giving 14 days' advance notice.
- Usually the Speaker, after his election cuts-off all connections with his party and acts in an impartial manner. He does not vote in the first instance, but exercises his casting vote only to remove a deadlock.
 - Charges his salary from the Consolidated Fund of India.
 - The majority of the total membership can remove speaker after giving a **14 days** notice. During this time, he does not preside over the meetings. After his removal, continues in office till his successor takes charge.

Powers and Functions of Speaker

- The Speaker presides at the meetings of the House of the People as well as joint setting of two Houses of Parliament.
- The Speaker gives permission to the members to speak in the house.
- If, the **Quorum** (presence of only one-tenth of the total strength of the house) is not complete, the Speaker can adjourn the house.
- He decides as to whether a bill is a Money Bill or not.
- He appoints the Chairman as well as Deputy Chairman of all the committees of the house. Speaker takes the final decision as to disqualify a member on grounds of defection.



PRO-TEM SPEAKER

The first meeting after election, in which Speaker and Deputy Speaker is elected by Members of Parliament is head under the seniormost Member of Parliament, he is called Pro-Tem Speaker.

Deputy Speaker

- The Deputy Speaker of the Lok Sabha is the Vice-Presiding Officer of the Lok Sabha, the Lower House of Parliament of India. He acts as the Presiding Officer in case of leave or absence caused by death or illness of the Speaker of the Lok Sabha.
- The Deputy Speaker is elected in the very first meeting of the Lok Sabha after the General Elections for a term of **5 years** from among the Members of the Lok Sabha.

Powers of Lok Sabha

- Money and the Financial Bills originate only in Lok Sabha. The confidence and no confidence motions can be introduced in Lok Sabha only.
- **Article 352** says that the Lok Sabha in a special sitting can disapprove the continuance of National Emergency, even when the Rajya Sabha rejects such a resolution.

Power, Privileges and Immunities of the Members of Parliament

Parliamentary privileges are special rights, immunities and exemptions enjoyed by the two Houses of Parliament, their committees and their members. Without these privileges the Houses can neither maintain their authority, dignity and honour nor can protect their members from any obstruction in the discharge of their Parliamentary responsibilities. Parliamentary privileges don't extend to the President who is also an integral part of the Parliament.

Parliamentary privileges can be classified into two broad categories, which are as follows

- Those that are enjoyed by each House of Parliament collectively.
- Those that are enjoyed by the members individually.

Some of the privileges and immunities enjoyed by the members of the Parliament, are as follows

- Freedom of speech in the House subject to the rules framed by the House. The members are not permitted to discuss the conduct of the judges of the Supreme Court and High Court, except when the removal of a Judge is being considered by Parliament.
- Immunity from proceedings in any court in respect of publication of any report, paper or proceedings under the authority of either House of Parliament.
- Exemption from liability to serve as Jurors.

Sessions of Parliament

- Begins with the consent of the President.
- Gap between two sessions should not be more than **6 months**. *The Parliament generally meets in three sessions in a year, which are as follow*
 - i. **Budget Session** (February-May) It is the longest session.
 - ii. **Monsoon Session** (July-August).
 - iii. **Winter Session** (November-December) It is the shortest session.

Termination of Sitting

The sitting of a house may be terminated by

Dissolution The Lok Sabha is subject to dissolution. Dissolution takes place when the President exercises his power under **Article 85(2)**. It can be dissolved by efflux of time i.e. on the expiry of its term of 5 years of the terms as extended during a proclamation of emergency.

Prorogation It means the termination of a session of the house by an order made by the President under Article 85 (2) (a) of the Constitution.

Adjournment It does not put an end to the existence of a session of Parliament, but it merely postpones the further transaction of business for a specified time, hours, days or weeks. Adjournment generally does not have any effect on pending business.

Joint Session

- It is ordered by the President to consider a particular bill in case
 - Bill passed by one house and rejected by the other.
 - The amendments made by the other house are not acceptable to the house where the bill originated.
 - When a bill remains pending or unpassed for more than **6 months**.
- Joint session of Parliament is presided over by the Speaker of the Lok Sabha. In his absence, by the Deputy Speaker, or in his absence by the Deputy Chairman of Rajya Sabha or in his absence any other member of the Parliament who is acceptable to both the houses.
- Deadlock over the bill is resolved by a majority of the members of both the Houses of Parliament present and voting.
- No fresh amendment can be done in joint session.
- There is no provision of joint session for passing Money Bills and Constitutional Amendment Acts.

In Indian history, only three bills have been referred to the joint sitting

i. Dowry Prohibition Bill	—	1961
ii. Banking Service Commission Bill	—	1978
iii. POTA Bill	—	2002

Mechanisms of Parliamentary Proceedings

Question Hour

The first hour of a sitting of the Lok Sabha devoted to questions and that hours is called the Question Hour.

The questions are of three types

- i. **A Starred Questions** It is one to which a member desires an oral answer from the Minister in the House and is required to be distinguished by him/her with an asterisk. Answer to such a question may be followed by supplementary questions by members.
- ii. **An Unstarred Question** It is one to which written answer is desired an oral answer from the Minister in the House and is required to be distinguished by him/her with an asterisk. Answer to such a question may be followed by supplementary questions by members.
- iii. **Short Notice Question** A member may give a notice of question on a matter of public importance and of urgent character for oral answer at a notice less than 15 days prescribed as the minimum period of notice for asking a question in ordinary course. Such a question is known as Short Notice Question.

Zero Hour

The period follows the question hours and it starts at the noon and its duration is one hour (from 12 noon to 1pm). During the Zero Hour various issues of public importance are raised without prior notice.

Parliamentary Proposal

Some parliamentary proposal in Lok Sabha are as follows

Calling Attention Motion With the prior permission of the Speaker, any Member of the Parliament may call the attention of a minister to a matter of urgent public importance. The minister may make a brief statement about the matter or he may ask for time to make a statement later.

Privilege Motion It is a motion moved by a member of Parliament. He charges the minister with committing a breach of the privilege of the house by withholding or distorting facts.

Adjournment Motion It is introduced in the Parliament to draw attention of the house to a definite matter of urgent public importance and needs the support of 50 members to be admitted. It can only be moved in Lower House of the Parliament. It should not raise any matter which is under adjudication by a court.

No-Confidence Motion It is a resolution introduced by the opposition claiming that the house has lost its confidence in the government. If it is passed, then government must resign from the office.

It can only be introduced in the Lok Sabha. Rajya Sabha does not enjoys this power because **Article 75** says that Council of Minister shall be collectively responsible to the Lok Sabha. This motion requires the support of 50 members to be admitted.

Censure Motion The motion seeks to censure the government for its lapses. If the censure motion is passed against the government, it should pass a confidence motion as soon as possible to regain the confidence of the house. And government, does not need to resign immediately unlike in case of No-Confidence Motion. It can be moved against an individual minister for specific policies or actions. This motion should state the reason for its adoption. It is in practice since 1954.

Legislative Procedure in Parliament

The proposal for a law is called Bill. Until a bill is passed through a proper procedure, it cannot be a law or an act. Only Speaker of Lok Sabha decides whether the bill is a Money Bill or an Ordinary Bill.

Ordinary Bill

- All the bills other than Financial bills, Money bills and the Constitutional Amendment are Ordinary bills.
- An Ordinary Bill can be introduced in any of the two Houses of Parliament. The Ordinary Bill can be introduced by either a Minister of the Government or any Member of the House.

Money Bill

No Money Bill can be introduced without the consent of the President of India (**Article 110**).

- It can be introduced only in Lok Sabha. The Speaker certifies a bill to be a Money Bill and his decision is final in this regard. (**Article 110**)
- Money Bills relate to bills seeking imposition or abolition of taxes, matters pertaining to borrowing of money by the government, custody and maintenance of consolidated funds etc.
- When, the Money Bill is passed by the Lok Sabha, it is sent to the Rajya Sabha for its recommendations. Rajya Sabha can delay, it only for **14 days**. It's final approval lies with Lok Sabha only.

Financial Bill

- Any bill dealing with revenues or expenditure, but not certified as, Money Bill by the speaker is a Financial Bill.
- Financial Bill only be introduced in Lok Sabha on the recommendation of President.

President Assent to the Bills

- After a Bill has been passed by both the Houses of Parliament, it is presented to the President for his/her assent.
- The President may either assent to the Bill, withhold his/her assent or return the Bill, if it is not a Money Bill, with a message for reconsideration of the Bill or any specified provisions thereof, or for considering the desirability of introducing any such amendments as he may recommend in his/her message.
- The President may either give or withhold his/her assent to a Money Bill. A Money Bill cannot be returned to the House by the President for reconsideration.
- Also, the President is bound to give his/her assent to Constitution Amendment Bill passed by Parliament by the prescribed special majority and where necessary, ratified by the requisite number of State Legislatures.

CONSOLIDATED FUND OF INDIA

[ARTICLE 266 (1)]

- All revenues received by the government by way of taxes like income tax, central excise, customs and other receipts flowing to the government in connection with the conduct of government business i.e. non-tax revenues are credited into the Consolidated Fund constituted under Article 266 (1) of the Constitution of India.
- All loans raised by the government by issue of public notifications, treasury bills (internal debt) and loans obtained from foreign government and international institutions (external debt) are credited into this fund. All expenditure of the government is incurred from this fund and no amount can be withdrawn from the fund without authorisation from the Parliament; Article 114 (in effect that of Lok Sabha).

CONTINGENCY FUND OF INDIA (ARTICLE 267)

- The Contingency Fund of India records the transactions connected with Contingency Fund set by the Government of India under Article 267 of the Constitution of India.
- This fund acts more or less like an imprest account of Government of India and is held on behalf of President by the Secretary to the Government of India, Ministry of Finance, Department of Economic Affairs. At present, it is 500 crore.

PUBLIC ACCOUNT [ARTICLE 266(2)]

- In the public account, constituted under Article 266 (2) of the Constitution, the transactions relate to debt other than those included in the Consolidated Fund in India.
- The transactions under debt, deposits and advances in this part are those in respect of which government incurs a liability to repay the money received or has a claim to recover the amounts paid.
- The receipts under public account do not constitute normal receipts of government. Parliamentary authorisation for payments from the public account is therefore not required.

Budget in Parliament

- 'Budget' is the popular name for the 'annual financial statement' that has been dealt with in Article 112 of the Constitution. The budget is a statement of the estimated receipts and expenditure of the Government of India in a financial year.
- Till 2016, the Government of India has two budgets– the Railway Budget and the General Budget. On the recommendations of Bibek Debroy Committee, the Government of India has announced that there will be single General Budget 2017 onwards. The Finance Minister presents the General Budget.

Parliamentary Committees

- Committees have been created so that members of Parliament can discuss and debate on the working of a certain department of the government. Most of the committees function under the direction of the Speaker and essentially of the Lok Sabha.
- *Committees are classified under two heads, which are as follow*
 - Adhoc Committees** They are created for a temporary period. They can be divided into two categories, i.e. Inquiry Committees and Advisory Committees.
 - Standing Committees** They are broadly classified into the following categories: Committees of Enquires, Committees to Scrutinise, Financial Committees, Committees of Administrative Character, Committees with provision of facilities to member.
- The Chairman of all the committees (except the Joint Committees on salaries and allowances of MPs) are appointed by the Speaker from amongst the members of the committees. In case, Speaker is a member of a committee, he becomes **Ex-officio chairman** of the committee.

Public Accounts Committee

- This committee was set-up first in 1921 under the provisions of the Government of India Act of 1919 and has since been in existence.
- At present, it consists of 22 members (15 from the Lok Sabha and 7 from the Rajya Sabha).
- The members are elected by the Parliament every year from amongst its members according to the principle of proportional representation by means of the single, transferable vote. Thus, all parties get due representation in it.
- The function of the committee is to examine the annual audit reports of the Comptroller and Auditor General of India (CAG), which are laid before the Parliament by the President.

Estimates Committee

- The origin of this committee can be traced to the standing financial committee set-up in 1921.
- The first Estimates Committee in the post-independence era was constituted in 1950 on the recommendation of John Mathai.
- Originally, it had 25 members but in 1956 its membership was raised to 30. All the 30 members are from Lok Sabha only.
- These members are elected by the Lok Sabha every year from amongst its own members, according to the principles of proportional representation by means of a single transferable vote.
- The function of the committee is to examine the estimates included in the budget and suggest 'economies' in public expenditure.

Committee on Public Undertakings

- This committee was created in 1964 on the recommendation of the Krishna Menon Committee.
- Originally, it had 15 members (10 from the Lok Sabha and 5 from the Rajya Sabha). However, in 1974, its membership was raised to 22 (15 from the Lok Sabha and 7 from the Rajya Sabha).
- The members of this committee are elected by the Parliament every year from amongst its own members according to the principle of proportional representation by means of a single transferable vote.
- The term of office of the members is one year. A minister cannot be elected as a member of the committee.

THE STATE EXECUTIVE

It deals with the government at state level. It consists of Governor and Council of Minister headed by Chief Minister.

Governor

The Constitution provides for an office of the Governor in the states under Article 153.

Appointment

- Appointed by the President, on the advice of the Council of Ministers headed by the Prime Minister. Same person can be appointed Governor for more than one state.
- Constitution prescribes a 5 years term, but it is subject to the pleasure of the President.